

Star Chamber to stay his the said Sir John Bennet's suit, he having lately by sentence and decree there (for bribery and other misdemeanors in his office of Judge of the Prerogative Court) been fined twenty thousand pounds, and censured to be imprisoned, and made incapable of any office of judicature; by reason whereof, being disabled to hold the office in question, the defendant obtained it, and pretending this assise was brought by Sir John Bennet that he might enjoy the said office contrary to the decree, he therefore prayed to stay his proceedings.

Sir John Bennet, thereupon, having day given him to shew cause why an injunction should not be granted, shewed then a pardon from the late King after the said sentence, wherein was recited all the bribery and offences contained in the said decree, and all penalties and punishments by reason thereof, and all disabilities and incapacities, and all things concerning the said sentence, except the said fine of twenty thousand pounds.

The Court of Star-Chamber thereupon requested Sir John Walter, Chief Baron, and Sir Francis Harvey, Third Justice of the Common Pleas, to call to them all the justices and Barons, and to consider of the said decree and pardon, and to certify their opinions, whether it were fit to permit the proceedings in the assise or not: and all the justices and Barons being assembled at Serjeants-inn, the sentence and pardon were read before them, and the case argued by counsel on both sides.

And it was resolved by the justices and Barons, that this pardon hath taken away all force of the sentence in the Star Chamber, [56] except for the fine of twenty thousand pounds, and all inabilities are discharged thereby, and that the sentence never took from him the office, but the execution thereof, nor gave authority to place others: but if the archbishop, before the pardon and after the sentence, had appointed him to execute his office, and he durst not do it, then peradventure the said archbishop, for his non-attendance, might have seized the said office, and have granted it to another; but the sentence by itself cannot take away the office, which is a freehold; and the pardon having taken away all the offences, they therefore conceived it convenient to permit him to proceed with his assise, and, if doubtful, it may be found specially, and so receive a judicial hearing.

[57] HILARY TERM.

2 Car. 1. In the Common Pleas.

Sir Thomas Richardson, Knt., Chief Justice. Sir Richard Hutton, Knt., Sir Francis Harvey, Knt., Sir George Croke, Knt., Sir Henry Yelverton, Knt., Justices. Sir Robert Heath, Knt., Attorney General. Sir Richard Sheldon, Knt., Solicitor General.

CASE 1. HEARN *against* ALLEN.

Trinity Term, 22 Jac. 1. and Hilary Term, 1 Car. 1. Roll 1876.

[Referred to, *Cuthbert v. Robinson*, 1882, 51 L. J. Ch. 241.]

A devise of a house "*cum pertinentiis*" will not pass land at a distance, though occupied with the house. *Ante*, 17. *Post*. 169. 308.

Hutton, 85. Bendl. 128. Moor, 222. Plowd. 169. Cro. Eliz. 89. 114. Cro. Jac. 121. 174. Co. Lit. 5. 56. 2 Bl. Rep. 728. 3 Com. Dig. 443. 2 Peere Wms. 303. 369. 1 Bro. Ch. Cas. 331. 2 Term Rep. B. R. 500. 502.

A devise to A. and his heirs, and if he die without heir then to a stranger, passes an estate in fee to A.; but a devise to A. and his heirs, and if he die without heir then to his sister in fee, passes an estate in tail only; for the sister being his heir, it appears that the testator meant heirs of his body.

Cro. Jac. 290. 416. 591. Moor, 853. 3 Bulst. 195. 1 Roll. Abr. 836. Hutt. 85. Com. Rep. 82. Salk. 233. 238. 3 Lev. 71. 1 Peere Wms. 24. Ld. Raym. 568. 2 Eq. Cas. Abr. 305. 308. 1 Vezey, 89. Dougl. 254. Cowp. 234. 833. 1 Term Rep. 596. 3 Term Rep. 83. 143. 484.